

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
HERMAN ORTIZ,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JUSTIN
MARZAN, SHIELD NUMBER 5774, AND
LIEUTENANT IAN RULE, SHIELD NUMBER
UNKNOWN,Defendants.
-----X

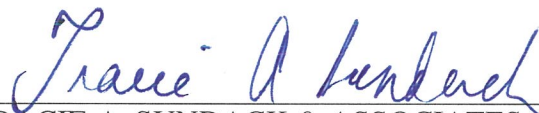
Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
5423 Avenue J
Brooklyn, New York 11234

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 18, 2016TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
HERMAN ORTIZ
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER JUSTIN MARZAN, SHIELD
NUMBER 5774,
LIEUTENANT IAN RULE, SHIELD NUMBER
UNKNOWN,
6th Precinct
233 West 10 Street
New York, New York 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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HERMAN ORTIZ,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER JUSTIN
MARZAN, SHIELD NUMBER 5774, AND
LIEUTENANT IAN RULE, SHIELD NUMBER
UNKNOWN,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff HERMAN ORTIZ by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, was acting under the color and pretense of the statutes,

ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

6. That at all times hereinafter mentioned, Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

9. On August 8, 2015, at approximately 4:30 a.m., Plaintiff HERMAN ORTIZ was a passenger in a motor vehicle traveling west on 14th Street approaching its intersection with 9th Avenue, New York, New York when the said vehicle was ordered to pull over by an unmarked New York City Police Department vehicle operated and/or manned by Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN.

10. At the aforementioned date and time, the driver of the motor vehicle complied and brought the vehicle to a stop across from 408 West 14th Street, New York, New York. Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, approached the vehicle and ordered the occupants to exit the vehicle. The occupants of the vehicle, including Plaintiff HERMAN ORTIZ, complied

11. After Plaintiff HERMAN ORTIZ exited the vehicle, Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, approached Plaintiff and greeted him having recognized Plaintiff from prior encounters.

12. Upon information and belief, as a result of prior encounters between Plaintiff HERMAN ORTIZ and Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, said Defendant Police Officer was aware that Plaintiff HERMAN ORTIZ routinely carried a small amount of prescription pain medication on his person, and also carried a copy of the prescription for said medication. In addition, upon information and belief, Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, had on prior occasion verified the validity of Plaintiff HERMAN ORTIZ's prescription and was aware that Plaintiff's possession of said medication was lawful.

13. At the aforementioned time and place, Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, asked Plaintiff HERMAN ORTIZ "Do you have anything on you that we should know about?" or words to that effect. Plaintiff HERMAN ORTIZ responded "Yes. Like I have always told you in the past, my [pain] medication." Defendant LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, then asked "Do you have your piece of paper, like you always do?" or words to that effect. Plaintiff HERMAN ORTIZ stated that his prescription was in a bag inside the vehicle. At this point, Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, searched Plaintiff HERMAN ORTIZ and found a small pill carrying case containing two pills. Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, then searched the motor vehicle but told Plaintiff HERMAN ORTIZ that they were unable to find the prescription.

14. At the aforementioned time and place, Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, handcuffed Plaintiff HERMAN ORTIZ and placed him under arrest for Criminal Possession of a Controlled Substance (7th Degree) despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

15. Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, placed Plaintiff HERMAN ORTIZ in a police car and transported him to the 6th Precinct (233 West 10th Street, New York, New York 10014) where he was subjected to an illegal strip-searched and his arrest was processed. Plaintiff HERMAN ORTIZ was then transported to Central Booking for arraignment.

16. That on August 9, 2015, at approximately 3:00 a.m., following arraignment, Plaintiff HERMAN ORTIZ was released from custody on his own recognizance.

17. That on August 18, 2015, all criminal charges against HERMAN ORTIZ were dismissed (Docket No. 2015NY050321 - Criminal Court of the City of New York, New York County).

18. That on or about August 28, 2015, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff HERMAN ORTIZ duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

19. That a hearing, pursuant to General Municipal Law Section 50-h, regarding this matter was held on December 7, 2015 (Claim No. 2015PI024675).

20. This action is commenced within one year and ninety days after the cause of action arose.

21. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

22. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

23. That at the aforementioned time and place, Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, placed Plaintiff HERMAN ORTIZ under arrest, despite Defendants' knowledge

that they lacked probable cause to do so.

24. That Plaintiff HERMAN ORTIZ has not committed any offense and Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

25. That Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff HERMAN ORTIZ and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff HERMAN ORTIZ and such actions were committed in bad faith.

26. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff HERMAN ORTIZ and such actions were committed in bad faith.

27. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff HERMAN ORTIZ was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for her safety, and he was humiliated and subjected to handcuffing and other physical restraints, and strip-searched, without probable cause.

28. As a further result of the above-described acts, Plaintiff HERMAN ORTIZ was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

29. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Plaintiff HERMAN ORTIZ was falsely imprisoned from August 8, 2015 at approximately 4:30 a.m. to August 9, 2015, at approximately 3:00 a.m. by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

31. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, intended to confine Plaintiff HERMAN ORTIZ and Plaintiff HERMAN ORTIZ was conscious of the confinement, and Plaintiff HERMAN ORTIZ did not consent to the confinement.

32. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff HERMAN ORTIZ and damaging Plaintiff HERMAN ORTIZ in his reputation and depriving her of her liberty.

33. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff HERMAN ORTIZ suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

34. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff HERMAN ORTIZ .

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff HERMAN ORTIZ as alleged herein.

39. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff HERMAN ORTIZ as alleged herein.

40. Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff HERMAN ORTIZ's constitutional rights.

41. All of the foregoing acts by Defendants deprived Plaintiff HERMAN ORTIZ of

federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

42. Plaintiff HERMAN ORTIZ repeats, reiterates and realleges each and every allegation contained in this complaint.

43. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff HERMAN ORTIZ's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

44. As a result of the aforementioned conduct of the individual Defendants, Plaintiff HERMAN ORTIZ's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

45. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. Defendants CITY OF NEW YORK, POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, arrested Plaintiff HERMAN ORTIZ in the absence of probable cause and without a warrant.

47. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK, POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, Plaintiff HERMAN ORTIZ was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely

imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

48. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff HERMAN ORTIZ's rights.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT UNDER NEW YORK STATE LAW**

49. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

50. As a result of the foregoing, Plaintiff HERMAN ORTIZ was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

51. Plaintiff HERMAN ORTIZ was conscious of said confinement and did not consent to same.

52. The confinement of Plaintiff HERMAN ORTIZ was without probable cause and was not otherwise privileged.

53. As a result of the aforementioned conduct, Plaintiff HERMAN ORTIZ has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

54. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

55. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees

who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

56. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

57. Plaintiff HERMAN ORTIZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff HERMAN ORTIZ. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

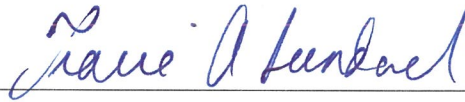
59. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious

disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff HERMAN ORTIZ.

60. As a result of the foregoing, Plaintiff HERMAN ORTIZ is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff HERMAN ORTIZ demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER JUSTIN MARZAN, SHIELD NUMBER 5774, and LIEUTENANT IAN RULE, SHIELD NUMBER UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 18, 2016

A handwritten signature in blue ink, reading "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
HERMAN ORTIZ
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 18, 2016



TRACIE A. SUNDACK